thanked the members for the attention with which they had listened to his paper.

The Resolution was then put by the President, and was carried.

WILLIAM GOULDSTONE.

CENTRAL CRIMINAL COURT, SEPT. 14, 1883.

(*Before* Mr. Justice Day.)

[*Times*, Sept. 15, 1883.]

William Gouldstone, 26, blacksmith, was placed upon his trial upon an indictment charging him with the wilful murder of his five children—Charles, Herbert, and Frederick Gouldstone, and two male infants, on August 8.

The prisoner pleaded "Not Guilty."

Mr. Poland and Mr. Montagu Williams conducted the prosecution for the Crown; Mr. Grain and Mr. Elliot were counsel for the defence.

The prisoner was first tried upon the indictment charging him with the wilful murder of his eldest child, Charles Gouldstone.

Mr. Poland, in opening the case, said the prisoner, William Gouldstone, was charged in this indictment with the wilful murder of Charles Gouldstone, his son. The prisoner had been for five years in the service of a firm in Lower Thames street. He had been living for ten weeks at Walthamstow with his wife and three children—the eldest, the subject of the indictment, Charles, being three-and-a-half years, Herbert two-and-a-half years, and Frederick 16 months old. On the 1st August his wife, at the place where they were then living, was confined of twins. The prisoner was by all accounts a sober, hard-working man, and had been maintaining his wife and children by his daily labour. There was no doubt, receiving as he did about 25s. per week, that he regretted that his wife was confined of twins so as to add so seriously, as he thought, to the number of his children. Up to that time, the learned counsel repeated, the prisoner had been sober and industrious. On the day of the confinement and on the following night the landlady, for the first time, saw that he was somewhat the worse for drink. As he (Mr. Poland) gathered from the evidence, the prisoner continued at his work until the Friday before Bank Holiday, Monday, August 6th. On the Monday following—Bank Holiday—the prisoner was, of course, not at work, neither did he go to his employment on Tuesday, 7th, or Wednesday, 8th August, although he did not remain at home on those days. On the 8th August he came home at half-past 5 in the evening, his usual time for returning being half-past 7. When he came home, the two eldest children were playing in the kitchen, and in the bedroom on the same floor was his wife, the third child Frederick, and the two babies, which were being suckled by the mother. Mrs. Hamilton, a lodger who had kindly attended Mrs. Gouldstone during her confinement, was also in the room washing the children. The jury would have evidence that the prisoner, who was then apparently sober, took from the bedroom into the kitchen the child Frederick, and they would find that after going backwards and forwards into the room, he went into the kitchen, moved the perambulator, and placed a chair near the cistern. It would be proved beyond all question that the prisoner drowned the three eldest children in the cistern, and a piece of cord was subsequently found tied round the neck of one. Having thus destroyed the lives of these three children, the prisoner went into the bedroom where his wife was. Mrs. Hamilton, thinking he wanted to speak privately to his wife, left the room, leaving him alone with his wife and the two babies. The prisoner locked the door, and Mrs. Hamilton then heard screams of "murder" coming from Mrs. Gouldstone, who called out that the prisoner was murdering her children. Mrs. Hamilton, in company with the landlady of the house, endeavoured to

force the room door open, but they were unable to do so. The prisoner soon afterwards opened the door and said, "I have killed the children, and I am happy now," and then he said to his wife "Your other three children are in the cistern." Mrs. Hamilton found that, although the two babies were not dead, there had been inflicted upon them very serious injuries with a hammer which was found lying in the room. The infants' skulls had been fractured, and on the following night they both died. Upon the prisoner making this statement Mrs. Hamilton went into the kitchen, and there she found lying dead upon the floor the three elder children, the bodies being saturated with water; and evidently their death had been caused by drowning in the cistern. The act must have been done with great deliberation, as only 14 inches of water was in the cistern at the time. The prisoner said further to his wife, "All the children are dead now. I shall be hung, and you will be single. You wished them dead, and now they are." The police were sent for, and the wife, knowing that he was to be taken away, kissed him, and asked him what money he had about him. He gave her what he had, and he was then taken to the police station. When the police came they found him with his coat off and with his shirt sleeves tucked up. The prisoner said, "Good evening, policeman. I have done it. Now I am happy, and ready for the rope." He repeated the statement to his wife that he had killed the children and that he should be hanged. While on the way to the police station he said to the officer who had him in charge, "When I took my money last week (referring to the previous Friday when he was paid) I thought of buying a revolver to do it with, but I altered my mind, as I thought it would make too much noise. I had a hard job with the two biggest, but the other little ——— I soon settled him. I thought it was getting too hot with five kids within three-and-a-half years, and I thought it was time to put a stop to it." When charged, the prisoner replied, "That is right; I am happy now. I did it like a man." After he had been placed in the cell, the prisoner spoke to the constable who was placed in charge of him, and said, "I had an extra drop of drink to-day to accomplish the job. Five of them have gone to glory, and a good job too." He added that he was sorry for his wife, but the children would be better off in heaven, if there was such a place, than leaving them to the mercy of the world. The prisoner further stated that he wished he had killed the little ones out of the way; he did not know whether he hit them once or twice; and he had had it preying on his mind for some time previously. Up to the time of the occurrence the prisoner was pursuing his ordinary calling, and whether he had been drinking at the time the prosecution were not able to prove, but there was his own statement to that effect. The learned counsel pointed out that the prisoner, according to his own statement, had considered the matter beforehand, and whether he should buy a revolver to commit the act, and he seemed at length to have come to the terrible determination to take the lives of his children, thinking that, instead of having the burden of maintaining them and leaving them to struggle in the world, he would take their lives. He preferred to take that course, knowing thoroughly well what he was about, and that, by the law of England, it was a crime to take human life, for he said, "I shall be hung, and I am ready for the rope." This expression indicated that he was conscious at the time that he was committing a crime against the law of the land. If he knew the nature and quality of the act he was committing, and that it was a crime, he was responsible to the law for that act.

Mr. Grain, in opening the case for the defence, submitted that the prisoner, according to the evidence of the prosecution alone, was not in a state of mind to know the nature of the act he was committing, for it otherwise would have been impossible that the kind and affectionate father, the good husband, the well-conducted and meritorious man, in the short space of time alleged, should have murdered in so barbarous a manner his five children, three of whom had been playing at his knee, the two infants being suckled at their mother's breast. He (Mr. Grain) should call before them witness after witness, who would prove that in both branches of the prisoner's family there was un-

doubtedly hereditary insanity. The accused's mother at the present time was a lunatic, and although she was not confined in an asylum, yet she was undoubtedly insane, and at the time of his birth she was not in her right mind. His aunt on his mother's side was also not in a right state of mind. The insanity was not confined to the maternal side alone. He should be able to prove that on the paternal side there was also insanity in the family. His second cousin on his father's side died a lunatic, and other members of the family on the same side had been of unsound mind. He should call Dr. Savage, the principal physician at Bethlem Hospital, and he would say that having examined the prisoner, and heard the evidence of insanity in both branches of the family, he was of opinion that he had had a hereditary tendency to a weak mind. He submitted that the prisoner's mind became unhinged before he committed the act, and that unless it had become so it would have been impossible for him to have committed a deed of so awful a character.

A number of witnesses were then called in support of the defence.

Thomas Gouldstone, examined by Mr. Grain for the defence, said—I am the father of the prisoner at the bar. His mother is alive, and is very bad in her mind now, and has been for many years. A woman has to be employed to look after her. Once she attempted to strangle herself, and once I took a knife away from her. About eight weeks ago she threatened to take her life. When the prisoner was born she was in a bad state of mind. My wife's sister is also not in her right mind. William Gouldstone, a second cousin of mine, died in a madhouse, and my father's sister wore a strait jacket for some years.

Cross-examined by Mr. Poland.—All my children have been quite right except the prisoner. My wife has never been in an asylum. She is a sober woman. When I saw my son about eight weeks ago he seemed queer.

Robert Gouldstone, the eldest son of the last witness, proved that his mother had threatened to make an end of herself, and the family had had to look after her and keep knives out of her way. The prisoner was ruptured some six or seven years ago, and about this time frequently complained of pains in his head.

Emily Gouldstone, sister of the prisoner, deposed that through troubles in business her mother had several times attempted to commit suicide. She last saw the prisoner about two months since at her sister's house.

William Graves, foreman at the Falkirk Ironworks, Thames street, where the prisoner was employed, deposed that he had known him since childhood. He had always known him to live happily with his wife and family. On the 2nd of August, after his wife's confinement, witness noticed a change in his manner, and spoke to him about it. The accused complained of pains in the head. Witness paid him his wages the next day, and gave him a customary present of 10s.

A number of fellow workmen also gave evidence on the prisoner's behalf. On several occasions the prisoner told a man named Cakebread that he would throw himself under a train if he thought he would be killed instantaneously and without pain, and at another time he said that he would throw himself down the lift if he could do so without torture. He also stated to other men that he wished he was dead, and he complained of pains in his head arising from the rupture. He also expressed a wish that someone would knock him on the head. He bore the character of a quiet and steady man, and if anything was rather morose.

Mr. Kennard, one of the prisoner's employers, stated that he knew nothing of him personally, but the general feeling among his fellow workmen was that he was insane.

Charles Gouldstone, a cousin of the prisoner's father, deposed that his son (the prisoner's second cousin) had been confined in a lunatic asylum for 16 months from 1880.

Dr. Sunderland, a medical man practising at Thaxted, in Essex, spoke to having attended the prisoner's mother, who was of unsound mind, for eight years. The form of insanity she was suffering from was despondency. He

also attended Mrs. Andrews, her sister, who suffered from the same malady. Replying to Mr. Poland, witness said that neither the mother nor her sister had been certified as insane.

Dr. Savage, the principal physician of the Bethlem Hospital, deposed that he had examined the prisoner, and from the examination alone he considered him rather weak in his mind, as was evidenced by slowness of appreciation of questions concerning the crime of which he was accused. When speaking about it he seemed not to appreciate in any way the gravity of the charge. Beyond that, from his personal examination, witness could say nothing. He had heard the evidence of the prisoner being a fond husband and father and a quiet steady workman, and details of the case, and he should think that his mind was unsound at the time the act was committed. He had heard his fellow workmen describe his wishing to be dead, and of his wanting to fall down the lift, and witness was of opinion that such symptoms were frequently present with persons of unsound mind.

The witness was about to be asked what conclusion he arrived at after hearing the evidence of insanity on both the paternal and maternal side of the family, when

Mr. Justice Day said it seemed to him that that was the question the jury had to decide. A doctor was entitled to give his medical evidence, but not to draw a conclusion which the jury had to draw.

Dr. Savage, in answer to further questions, said the insanity on the mother's side being proved, he thought there would be a great tendency for the prisoner to become insane, and that if insanity, even in a remote degree, was proved on the male side the liability to insanity in the offspring would be increased to a considerable extent. At Bethlem the last patient who died without being removed to Broadmoor, was a woman who had killed her whole family.

Replying to Mr. Poland, witness said he examined the prisoner on Thursday for between a quarter and half an hour. He was then called by the prisoner's solicitor, and he knew he had to examine him as to the state of his mind. From his conversation alone there was nothing to show that he was otherwise than a sane man. From what witness saw of him yesterday he would not certify the prisoner to be a lunatic, and he would say that he was not actively suffering from any form of mental disease that he knew of. He could not, therefore, certify that he was a lunatic. His conversation with witness was that of a rational man, and he should say the prisoner knew that the penalty awarded by law for the crime of murder was death. When he said he thought the prisoner was of unsound mind at the time of the commission of the act he formed the opinion from what he heard in court and from his examination of him. He thought he knew the penalty of what he was doing at the time, and that he had killed the children knowing that the penalty was death.

This concluded the evidence for the defence.

Mr. Justice Day then proceeded to sum up on the whole case. The prisoner, he said, was indicted for the wilful murder of his five children, and that he killed them was beyond all question. The question for the jury to determine was whether he killed them in such circumstances as would amount to the crime of wilful murder. The killing of a human being was presumptive murder; but the circumstances in which it took place might show that it did not amount to that crime, but that it amounted merely to manslaughter, justifiable homicide, or homicide by misadventure, or the act of a not reasonable being. The only question for the jury was whether this was the act of a reasonable being in the sense he would explain to them. The matter of law was one unquestionably for him, and the jury were bound to take his instructions with regard to the law, in doing which they would be incurring no responsibility upon themselves. He told them, as a matter of law, that if the prisoner at the time he killed the children knew the nature and quality of the act he was committing and knew that he was doing wrong, then he was guilty of wilful murder. The nature and quality of the act meant that the

man knew what it was that he was doing—that was to say, that he knew he was killing a fellow creature. He repeated that if a man killed a fellow creature knowing at the time that he was doing wrong then he was guilty of wilful murder. The only question, therefore, for them to determine was whether the prisoner knew the nature and quality of the act he was committing, and whether he knew it was wrong. The jury were bound to give their verdict according to the evidence, and to administer justice according to law. The circumstances were very sad, and a painful duty rested on the jury and all concerned in the trial. However painful that duty was they must not shrink from the performance of their duties. The only defence, and the one which had been set up on behalf of the prisoner with the utmost skill, discreetness, and ability by his learned counsel, Mr. Grain, was that the accused at the time he committed the act was of unsound mind, and therefore not responsible for his actions. His Lordship then carefully reviewed the evidence which had been given on the part of the defence in order to prove insanity, and remarked that previous to the 8th of August no one would have said the prisoner was of unsound mind, and referring to the statement made by the accused, he observed that it was difficult to say that at the time he did the deed he did not know what he was doing. He had had handed to him by the learned counsel for the prosecution, an Act of Parliament passed towards the end of last month—of the existence of which he was not previously aware, as no notice had been given to him—which might affect the form of their verdict. The former and logical law was simply this:—Wilful murder involved malice aforethought, and a person of unsound mind was incapable of forming an intention or malice aforethought, and therefore incapable of murder. In such circumstances a jury found a person "Not Guilty on the ground of insanity." The law, however, had been altered, and if the jury found that the prisoner was insane at the time he committed the act they would have to return a special verdict that he committed the act, but was insane at the time. If, on the other hand, they found that he knew the nature and quality of the act when he killed his children, and that he was not of unsound mind, they must find him guilty, and the new Act would not affect that verdict.

The jury retired to consider their verdict, and, after an absence of about a quarter of an hour, returned into Court, finding the prisoner *Guilty*.

Being asked in the usual course whether he had anything to say why sentence of death should not be passed upon him, the prisoner replied in the negative.

Silence was then formally proclaimed, and

Mr. Justice Day, having assumed the black cap, proceeded to pass sentence of death.

The prisoner, who had preserved a calm and undisturbed demeanour throughout the trial, was then removed.

TO THE EDITOR OF *The Times*.

SIR,—I feel it my duty to write shortly about the case of William Gouldstone, the murderer of his five children. Justice demands further investigation of the case. The facts are plain. A young man of 26, who had been a well-behaved and industrious man, odd in some of his ways, is seized with fear of impending ruin to himself and family, and kills them to send them to heaven. The act is an insane one, and I think little more should have been needed to prove it to be such, but it was proved that his mother and aunt both suffered from precisely similar fears of ruin, and though the Judge ridiculed the importance of a second cousin on his father's side being insane, I would repeat emphatically that there being an insane taint which could have been shown to exist in several second cousins and others on the father's side, was of great importance. A great deal was made of my statement that I could not certify to his insanity from my personal interview of 15 to 30 minutes. It does not follow that the man may not have been insane at the time the act was committed.

There is the feeling abroad that a man if insane and irresponsible is always so, whereas the most insane people often are collected enough during the greater part of their lives. The poor man Gouldstone is, to my mind, a typical case of insanity associated with insane parentage. He had done his work, which was purely mechanical, well, but he had no power to resist, and the act he perpetrated depended on an insane feeling of misery. I have no doubt he would have sooner or later developed delusions.

The medical officer to the House of Detention told me he considered him to be suffering from melancholia.

I trust this prisoner will not be allowed to be hanged. I may say that I am not one who is in the habit of defending criminals on the plea of insanity.

I am, yours truly,

GEO. H. SAVAGE, M.D.,
Physician Bethlem Hospital.

September 15, 1883.

TO THE EDITOR OF *The Daily Telegraph.*

Sept. 18, 1883.

SIR,—I feel bound to take notice of the letters written to you by "One of the Jury" in this case, as there seems to be great danger that the prisoner will suffer through misunderstanding of my opinion. The skilful cross-examination of Mr. Poland gave me no opportunity of representing my own opinion on the man's sanity. I was forced to own that in a short interview, from the facts seen by myself, I could not have signed a certificate of insanity. I doubt not but that if I had expressed a willingness to sign one that the haste of the proceeding would have been used as an argument against its value.

I did say, however, that, taking my examination with the history of the man and the crime, I had no doubt that he was of unsound mind. The Judge opposed strongly attempts to get my opinion, believing the common sense of a jury to be the best judge of sanity. This is all very well if the facts are explained by one understanding their value, and not otherwise. That the patient knew he had killed his children, and that he knew he might be hanged, I could not deny, but knowledge of this kind does not exclude insanity.

I have patients of the most insanely dangerous class here who have said the same things which Gouldstone said, and who know as much as he does. Yet they are mad. William Gouldstone ought not to suffer without a careful independent investigation of his history and the history of his crime, one not confined to an examination of twenty minutes or half an hour.

I am, yours truly,
GEO. H. SAVAGE.

Bethlem Hospital, Sept. 17.

LETTER FROM GOULDSTONE'S WIFE.

(*Standard*, Sept. 20.)

"During our five years' married life I frequently noticed that my husband was absent-minded and given to brooding. If he were asked a question he would not, no matter how simple it was, or however easy to answer, reply at once. He would think over it, and sometimes say something not concerning the question. We commenced housekeeping on 21s. a-week, and latterly he had 25s. It was sometimes difficult to make ends meet when the children came so rapidly, and this weighed on his mind, I fear, although he never spoke of it to me—except in the way of saying how sorry he was that my hands were so full, and that we could not go out together as we used to do. That was the only way in which he ever spoke of the burden of the family. Before we had

the first child, and right on till the birth of the second, we regularly went to church. The second child was weakly, and the first was still only a baby, so that we could not leave the house together. For all his occasional absent ways he was very lively, and as I had all to do with the spending of the money, and did not let him know if there was any trouble about payments when there was a confinement or sickness in the house, I always found it very easy to turn his attention to something brighter. He was very kindly with me and the children, handy and willing if they were ailing, and he constantly helped me in household duties. He was a man who had few acquaintances except his own relatives and his fellow-workmen, and he was nearly always at home when not at work, except on the Sunday morning, when he occasionally took a walk alone. But for hours together he would keep the children going with his concertina, which he was very fond of playing, while I was engaged in household duties. The children were very fond of him, and were never tired of listening to the concertina. If he seemed worried, amusing the children—at which he was very good—or a remark from me would at once change his mood. He was painfully aware of how easy it was for him to get worried, and he has often said to me that it was a good job he had not much to think of, as if he had he believed it would turn his brain. Nothing that ever he said or did before the loss of the little ones gave me the least fear that he would take his own life or that of anyone else. But shortly before my last babies were born he said to me that he believed he had not many weeks to live, which was a strange remark that I have often thought of since. He never complained, except that he did not know how I should manage with my hands already so full, and soon to be even fuller. But then lots of people manage on less, and we did very well, and when I put this before him he ceased to be moody and absent. I never knew till very lately that there was any insanity in the family. Knowing that now, and looking back on all that has happened, I am certain he was insane, and that the times when I found him sitting thinking lately he was distressing himself about our growing family. You see the eldest was $3\frac{1}{2}$, bright and healthy, but the next, $2\frac{1}{2}$, was sickly and could not walk, and the third being only 16 months, I had practically two babies to mind when the twins were born. But for all this there was no change in his kindly ways to me and the children. He got up early in the morning of the day when the twins were born, and got me a cup of tea, as he often did before, and did every morning from their birth till their death. The thing that struck me most was that during all this time he never took any notice of the babies. They were born about half-past ten, and he immediately went out of the house, and did not return till after twelve. He then came into the room to me, but did not speak. His appearance seemed changed, and his eyes were strange and wandering. He came home early on the day he attacked the poor things, and I asked him if he had told his foreman about the twins, as he had lived with him once, and we looked upon him as one of our own family, but he said he had not. Since the occurrence I have seen my husband three times at the House of Detention, once at the Old Bailey, and yesterday (Tuesday) in the prison at Chelmsford. On each occasion he has been as happy as a child at play. At Chelmsford he said he had seen several relatives whom he had not met for a long time, but neither he nor I made any reference to the fate of the children. His sister and aunt accompanied me yesterday. He asked me to take care of myself, and, turning to his relatives, said, 'You will take care of her, won't you?' Then he said, 'I have broken God's commandment, and I must expect to suffer, but He will forgive me for what I have done.' He realises his position in so far as he believes he will die, but he seems to have no notion of the enormity of killing the children. In a letter I had from him he spoke of them as being in heaven, where he hopes soon to join them. Here is a letter I have had from him, dated the 15th, in the same strain:—

"'My Dear Wife,—I feel it is a Pleasure to Write a few lines to you and trusting to God that it will find you as well as Can Be Expected after the

Dreadfull news but I am thankfull to God that I feel Happey as I may Expect and I Hope you will Look to God to Help you and He Will Comfort you as Well as myselfe Dearest Wife I Hope you will Receive this Letter this Evening and then I Hope you wont fret much about me as what God Doest is for the Best and I Hope you will Be able to Come and See Me Over a Short Time and I Hope Aunt and all at Home are quite Well and all Cousins and Rember me to all that know me, and Let Cousin Gouldstone in Mash-street know How I am and I am going to Send a few Lines to Mr. G. Sampford and I Hope all Will forgive me for I am thinking about you all. But I Hope you all Will Pray to God to Comfort One and all of you and Bear that in mind that God Will forgive all Dear Wife do not fret about what I Have to Live Upon Because I Can Have What I wish for in my Liveing from the Prison and you may Belive that the Chappelling will Give me all I Require and I thank God that I Have Been Preparing for the Other World and which I shell do more so now and Live in Hopes to meet you all in Heaven. So Good By God Bless you

"'WILLIAM GOULDSTONE,

"'Her Majesty's Prison, Chelmsford, Essex,
"Sept. 15, 1883.'"

TO THE EDITOR OF *The Daily Telegraph.*

SIR,—I am very happy to see that the true issue of this case is slowly but surely being placed before the public. As the employer of William Gouldstone, I am as sure as are his foreman and shopmates that he was insane when he committed the act. The ruling of the Judge, although, doubtless, a proper exposition of the law, precluded the jury from bringing in any other verdict than that of wilful murder. Had I myself been on the jury I should have felt compelled to return that verdict. That the man knew what would be the consequences of his act there can be no possible doubt.

Sir William Harcourt will have the whole matter carefully and fully laid before him, and it is satisfactory to know that his decision will not be based upon the dry letter of the law alone. This appears, indeed, to be a case in which law and common-sense are at variance.

Yours truly,
H. J. KENNARD.

67, Upper Thames street, Sept. 18.

TO THE EDITOR OF *The Daily Telegraph.*

SIR,—The Judge presiding at the Gouldstone trial told us (the jury) that the law regarding insanity was this, "That if a person was proved to be of sound mind up to the time of committing a certain deed; *if he knew the nature of that deed and the penalty it involved*, and if after this he still appeared of sound mind, we were bound according to this law to say such a person was not insane." What was the evidence? For five years he had worked at the Falkirk Iron Works, and had always done his work satisfactorily like a sane man. The seven witnesses who were called from these works admitted this, and they also stated that at intervals he had said he wished he was dead, that he would like to throw himself in front of a train or down the lift hole if he were sure of killing himself without any pain. He suffered from a rupture, and these remarks were often made when it pained him. When the great addition to his family came, he appeared somewhat upset, but did not mention the fact to any of his fellow-workmen. He then resolved to rid himself of his children, and intended at first to do it with a revolver, but thought that would make too much noise, so he planned it the other way, going out first, as he said, to have an extra drop of drink to nerve him to the job. When it was over he said, "Now I shall have the rope." The constable who took him, and the officer to whom he was handed in prison, stated that he seemed perfectly aware of what

he had done, and quite sane. We did not misunderstand Dr. Savage, who said he would not certify him as insane, though he had examined him, but he "considered he was of weak mind, owing to his slowness of appreciation of questions concerning the crime of which he was accused." The father and a sister stated that his mother and an aunt were at times of unsound mind and required looking after, but neither of them had ever been confined as lunatics. There was, however, a cousin of his father's on the male side who had been a soldier, and died in a lunatic asylum. These were the salient points of the evidence, and upon this the jury were quite agreed that the case of insanity was not made out, and therefore were compelled to return a verdict of guilty.

Yours obediently,

THE FOREMAN OF THE JURY.

TO THE EDITOR OF *The Times.*

* * * * * *

SIR,—There is one department of the law, that affecting homicidal crime, where a peculiar obscurity, or rather conflict, exists, at least in many instances; where the letter of the law, though plain, is in clear collision with the consensus of the best scientific medical observation also, and therefore, with equity and justice. The case of the Walthamstow murderer, now under sentence of death, affords an illustration. It was unmistakable, from the evidence at the trial, and, indeed, from the prisoner's own admission, that he well knew the nature of the act he was committing. Hence, too, that act is, plainly and legally, "wilful murder." But, from the testimony of the physician of Bethlem Hospital and others, it is similarly obvious that, notwithstanding this, the condition of the man's mind was, to say the least of it, very abnormal and doubtful.

And in so far as this may be the case, it is appropriate to bear in mind the very important resolution unanimously adopted at the annual meeting of the Association of Medical Officers of Asylums and Hospitals for the Insane, held at the Royal College of Physicians, London, on July 14, 1864, as follows:—

"That so much of the legal test of the mental condition of an alleged criminal lunatic as renders him a responsible agent, because he knows the difference between right and wrong, is inconsistent with the fact, well-known to every member of this meeting, that the power of distinguishing between right and wrong exists very frequently among those who are undoubtedly insane and is often associated with dangerous and uncontrollable delusions."

Such a resolution as the above by such a body is a virtual condemnation of the law by the responsible official exponents of modern medical science. And this, taken in connection with a series of Home Office precedents for interposition, constitutes a valid reason for expecting the Home Secretary, in such a case as the present one, to seriously reconsider the sentence.

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Yours truly,

WILLIAM TALLACK.

Howard Association, London, Sept. 17.

TO THE EDITOR OF *The Times.*

SIR,—It is a difficult thing to bring the public mind to think that a man who deliberately kills his five children ought not to be hanged as an example to deter others from doing the same thing. In the case of the convict Gouldstone there is reason to believe that what he wanted was to compass his own death, and he adopted an irrational method to accomplish what he desired. In any other case than murder an irrational act is accepted as ground at least for suspicion that the mind of the perpetrator is disordered; but in cases of murder no account is taken of the unreason of the act. The fact that a man

of good character, under the influence of a cause, or causes, held to be utterly inadequate by persons of sound mind, suddenly commits an act inconsistent with all his previous history, is in any other event than the perpetration of murder regarded as a very serious symptom arousing the most anxious fears on the part of his friends, especially if he has insane relations; but the law ignores all this, and asserts that a man is responsible for his actions if he knows the nature and quality of the act he commits, and that it is forbidden by law. This standard of responsibility is directly opposed to the established judgment of every person who has had any experience of the disordered mind. I sympathize with Dr. Savage as to his sense of duty as a recognized authority in such a matter, impelling him to make a public appeal for some further investigation of the circumstances. I agree with him that the act of William Gouldstone, taking into account the whole history, was an insane act, and none the less so because on every other subject his conduct and conversation was rational.

I am, Sir, your obedient servant,
W. Wood, M.D.,
Physician to St. Luke's Hospital.

No. 99, Harley street, Sept. 17.

JAMES COLE.

CENTRAL CRIMINAL COURT, OCT. 18.

(*Before* Mr. Justice Denman.)

James Cole, 37, labourer, was indicted for the wilful murder of Thomas Cole.

In August he was living with his wife at Croydon. Their two children, Richard, aged 14, and Thomas, three years eight months, also lived with them. Prisoner had been out of work for some time. On the evening of the 18th he took the child Thomas by the legs and knocked its head against the floor and walls. As the prisoner ran away he said to a man he met—"I have murdered my child."

It was elicited from the boy Richard that upon the night in question, the prisoner complained that his wife had hidden people under the floor and in the cupboard to try to poison him. He was jealous of his wife, but no ground for this suspicion appeared.

The plea of insanity was set up.

The surgeon and chief warder of Clerkenwell House of Detention gave evidence that the prisoner had displayed no symptoms of insanity, but had conducted himself in accordance with the prison regulations. On one occasion he became violent, but it was stated that it did not arise from unsoundness of mind.

For the defence, a brother of the prisoner was examined, and stated that some members of the family had been subject to fits.

Dr. Jackson, an alderman of Croydon, said he was quite certain that he was a typical lunatic, with dangerous delusions. In cross-examination, witness said the prisoner seemed to understand the questions put to him, and gave perfectly rational answers. He told him that he thought he was being poisoned, that his wife had set men on to him, that he used to shriek out and wake up at night thinking that people were murdering him. The prisoner acknowledged that he drank occasionally, and that he had been many times in prison for violence. The prisoner said he found a little drink made him lose his senses. The prisoner knew perfectly well that he was on his trial for murder. When asked how he could have treated his child so cruelly, he made no answer. In re-examination, Dr. Jackson said he believed the prisoner was in such a state of mind that no parish doctor ought to allow him to be at large, as he was dangerous.

Mr. Geoghegan, in defence, argued that there had been no motive for the commission of the crime, but that there were strong antecedent probabilities

that the prisoner was so unsound in his mind at the time that he did not know the nature and quality of the act he was committing.

Mr. Poland said that the prisoner's belief that attempts had been made to poison him would not be sufficient for any medical man to certify that he was insane, and thus necessitate his confinement in an asylum. It was for the jury to say whether the prisoner was a violent drunken man or an insane person fit for Broadmoor.

Mr. Justice Denman said it was an appalling case. As to the plea of insanity, the law as laid down by the House of Lords was, that every man was supposed to be responsible for his acts until the contrary was proved, and it must be shown that he was suffering from such a state of mental disease as not to know the nature and quality of the act he was committing, or that it was wrong. The Judge referred to the new Act regarding the treatment of persons alleged to be insane, and said that he observed that last session a learned colleague expressed dissatisfaction with the new enactment, in which, however, he was not inclined to disagree, the new Act not altering the law as to insanity as it previously stood, but only making a difference as to the formal verdict.

The jury found the prisoner *Guilty*.

The Judge, in sentencing the prisoner to death, said the learned counsel had attempted to make out that he was not responsible. The attempt had failed, and he must express his opinion that, according to the law of England, it had rightly failed. "Although it was, I think, established in evidence that you had been suffering from delusions, I cannot entertain a doubt that on the occasion on which you violently caused the death of your child, you know you were doing wrong, and knew that you acted contrary to the law of this country, and that you did it under the influence of passion, which had got possession of your mind from want of sufficient control, the result being that the poor child came by a sudden and savage death."

Fortunately, Sir William Harcourt ordered a medical examination of Cole to be made by Dr. Orange and Dr. Glover, with the result that he was found to be unquestionably insane, and he was reprieved. (See Occasional Notes of the Quarter.)

Side by side with the foregoing practical opinion, it may be well to place on permanent record the theoretical rhapsodies of lay writers of leading articles in leading newspapers. The day after the trial of Cole the following discreditable article appeared in the *Times* :—

. . . There was the usual defence of insanity. It was urged that the prisoner had been so violent when in prison that he had to be put in a padded cell; that he had used, as was very probable, threats to his wife, and that he had frequently been in prison for crimes of violence. These not uncommon symptoms of lawlessness and ruffianism satisfied one doctor that Cole was "a typical lunatic with dangerous delusions." But the jury were not convinced by the familiar argument that a man who does anything particularly wicked must be insane, and they found the prisoner guilty of murder. For years the plain men who sit in jury boxes have been assailed by medical theorists who seek to discredit all the homespun ideas as to responsibility. A *quasi*-scientific terminology or jargon, very advantageous for everyone who happens to be self-indulgent and passionate has been invented. Theories destructive of society's right to punish some of its most dangerous foes—which would save from the gallows all but those who showed in their evil deeds some scruple and compunction—have been promulgated in books and in the witness-box. The legal doctrine as to insanity has been cried down as unscientific. Juries have often been frankly invited to find a person of unsound mind just because he had committed a particularly monstrous crime. But with rare exceptions they decline to be convinced by this sophistry, and have clung to the legal, which in this matter is the common-sense view, and have held answerable for their actions men whom so-called experts would consign to Broadmoor Lunatic Asylum. It seems to have been proved that Cole entertained some delusions. But it was not shown that they at all affected his conduct towards his child; and there cannot be a doubt as to the righteousness of the verdict. This, however, may not conclude the matter. A case, the circumstances of which are not yet forgotten, has shown that a jury may come to the opinion that the evidence offered to substantiate a defence of insanity is quite insufficient, and act upon their view; and that the Home Office may nevertheless put their verdict aside. At the last sitting of the Central Criminal Court, Gouldstone, a blacksmith at Walthamstow, who had deliberately killed his five children, was convicted of murder; the jury, declining to be guided by the vague evidence as to his mental weakness. But for reasons satisfactory to the Home Secretary and his advisers, the jury were overruled, and Gouldstone was sent to Broadmoor. Who are to be punished if the hideousness of a crime is taken to be indi-